

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension of:**

CHRISTOPHER KURNIK, Moving Party,

a Permanent Certificated Employee,

and

BEVERLY HILLS UNIFIED SCHOOL DISTRICT,

Responding Party.

OAH No. 2025080578

**ORDER GRANTING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION**

On September 12, 2025, a videoconference hearing was held before Administrative Law Judge (ALJ) Glynda B. Gomez, Office of Administrative Hearings (OAH), State of California.

Tamra Smith, Attorney, represented moving party Christopher Kurnik (Employee). Michael T. Travis, Attorney, represented responding party Beverly Hills Unified School District (District).

District filed a Statement of Charges against Employee, and placed him on indefinite unpaid suspension. The suspension is based on allegations that Employee engaged in immoral conduct in violation of Education Code sections 44932, subdivision (a)(1). The Statement of Charges also alleges that Employee displayed evident unfitness for service in violation of Education Code section 44939, subdivision (a)(6).

Employee timely filed a Motion for Immediate Reversal of Suspension (motion) with OAH, pursuant to section 44939, subdivision (c)(1), on August 14, 2025. District filed and served its Opposition Brief on August 29, 2025. Employee filed and served a reply brief on September 8, 2025. The parties also presented oral argument during the hearing. The ALJ considered all of the above in making this Order.

Governing Procedure

Section 44939, subdivision (b), allows an employing school district to immediately suspend a permanent certificated employee without pay under specific circumstances, including immoral conduct without reasonable cause. In turn, section 44939, subdivision (c)(1), allows a suspended employee to file a motion seeking to reverse the unpaid suspension. Review of such a motion "shall be limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section." (*Ibid.*)

A motion such as this is analogous to a demurrer. Although well-pleaded facts must be accepted as true for purposes of a demurrer, "contentions, deductions or conclusions of fact or law" need not be accepted. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Thus, a demurrer can be sustained when a plaintiff's "conclusory

characterization of defendant's conduct as intentional, willful and fraudulent" is "patently insufficient." (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.)

Immoral Conduct

"Immoral conduct," pursuant to sections 44932, subdivision (a), and 44939, has been defined to mean conduct that is willful, flagrant, or shameless, conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare. It is used synonymously with dishonesty or a high degree of unfairness. (*Board of Ed. of San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811 [*Weiland*].)

In *Weiland*, the teacher was fired for falsifying attendance records of her adult-typing classes by signing the names of students to such records when the students were absent in order to secure her continued employment with the school district. The court upheld the teacher's dismissal, finding that her conduct constituted immoral conduct. (*Weiland, supra*, 179 Cal.App.2d at pp. 810-812.)

Immoral conduct also can be construed according to common usage. "The term 'immoral' has been defined generally as that which is hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare." (*Palo Verde etc. Sch. Dist. v. Hensey* (1970) 9 Cal.App.3d 967, 972 [*Hensey*].)

In *Hensey*, a junior college teacher's removal of the fire alarm and bell system, statement to the president of the college that he would remove it again if it were

replaced, references to “whore” and “whorehouses” throughout the year, discussion of “super-syphilis” in reference to Mexican-American students, and references to “pee” and “baby crap,” taken together, did not constitute immoral conduct. (*Hensey, supra*, 9 Cal.App.3d at p. 974.)

On the other hand, the *Hensey* court deemed to be immoral conduct the teacher’s gesture of licking a classroom wall with his tongue in an up-and-down manner, specifically directing his gesture to the County Superintendent of Schools. (*Hensey, supra*, 9 Cal.App.3d at p. 974.) The court stated “here, we have passed the limits of bad taste and vulgarity . . . this obscene incident indicates both ‘immorality’ and ‘evident unfitness.’” (*Id.*, pp. 974-975.)

Finally, in *Governing Board v. Haar* (1994) 28 Cal.App.4th 369, 378-385, the court concluded a teacher engaged in immoral conduct by sexually harassing female students; offering students raffle tickets in exchange for sitting on his lap at a Christmas party; rubbing a student's thigh in a sexual manner; hugging another student; telling a student she was cute; and telling another student she was so cute that when she went to high school she would have to take mace.

In this case, the Statement of Charges alleges that Employee created at least three videos using artificial intelligence (AI) (links are embedded in the Statement of Charges) and sent them to a colleague with no explanation. The ALJ reviewed the videos linked to the Statement of Charges. One video depicted a man (the parties indicate it is Employee) on a basketball court in athletic attire and an explosion in the background. The second video depicts two men in athletic attire, one of which is Employee, standing near a boxing or wrestling ring surrounded by an audience, and an explosion in the background. The third video depicts three men in athletic attire, one

of which is Employee, on an athletic field, with an explosion in the background. The videos do not have sound.

The Statement of Charges alleges:

1. On May 13, 2025, at approximately 10:46 a.m., Principal Richard Waters (Principal Waters) of Beverly Vista Middle School (Beverly Vista) contacted the District Office to report videos involving Respondent [Employee]. The videos were brought to Principal Waters' attention by another certificated staff member at Beverly Vista who expressed concerns regarding the content of a series of videos he had received from Respondent.

2. Specifically, one of the videos depicted Respondent [Employee] standing in front of a school resembling Beverly Vista while the school structure exploded behind him. Other videos included Respondent [Employee] with some of his colleagues exploding at a school site and a sporting event. The videos were highly detailed. [Link inserted here]

[¶. . . ¶]

10. District Assistant Superintendent of Business, Jason Hasty, immediately placed Respondent [Employee] on paid administrative leave on May 13, 2025. Respondent [Employee] subsequently sent multiple additional videos to Assistant Superintendent Hasty. These videos included depictions of explosions on school grounds and facilities,

individuals disintegrating into ash, violent scenes, and surreal simulations involving District-related imagery and other District employees.

11. Respondent [Employee] shared the videos with at least one other District employee without warning or context, and created significant concern among District staff, requiring administrative intervention and involvement.

12. Respondent's [Employee's] conduct caused significant concern, emotional distress, and disruption among staff, and was wholly inconsistent with the standards of conduct required of certificated employees working in proximity to children and fellow staff.

13. On June 13, 2025, the District filed for a workplace violence restraining order under Code of Civil Procedure section 527.8, Los Angeles Superior Court Case No. 25STR)03488. The court granted a temporary restraining order (TRO) prohibiting Mr. Kurnik [Employee] from coming within 100 yards of any District site or contacting District employees.

[¶. . . ¶]

19. Respondent's [Employee's] conduct described herein was morally indifferent and corrupt, inimical to the ethical standards and expectations of District employees.

Respondent [Employee] knew, or should have known, that

sharing videos showing school facilities exploding, and co-workers dissolving into ash without warning or context would cause fear and concern. Specifically, Respondent [Employee] was known to have a history of conflicts with colleagues and students, and has been emotional and unstable.

20. By creating and distributing a digitally fabricated video that depicts the violent destruction of school grounds, Respondent [Employee] trivialized and simulated an act of mass violence in the very setting where students and staff are legally entitled to feel safe.

21. Respondent's [Employee's] conduct was deliberate, premeditated, and visual in nature, and sent to at least one colleague.

22. Respondent [Employee] knew, or reasonably should have known, that fabricating and transmitting imagery of violence against a school site is not a subject to "mess around" with and that all District employees have a responsibility to report threats to the safety of school grounds and the learning environment.

None of the allegations in the Statement of Charges rise to the level of immorality discussed in the cases cited above. For example, the allegations do not involve dishonest conduct such as found in *Weiland*; prurient comments or actions done in bad taste as found in *Hensey*; the sexual harassment found in *Haar*; or

otherwise equate to the kind of shocking, corrupt, indecent, depraved, dissolute, flagrant, or shameless conduct generally defined in the case law. The essential allegations are that Employee created AI videos which depicted employee alone and/or with others at locations that resembled school athletic events with explosions in the background and shared those videos with a colleague. District has failed to sufficiently plead cause for suspension for immoral conduct.

The conclusory characterization of Employee's conduct as set forth in the Statement of Charges is insufficient to establish immoral conduct for purposes of the motion.

Conclusion

Good cause exists to grant the motion.

Pursuant to Education Code section 44939, subdivision (c)(5), this order shall become effective within five days of service, and District shall make Employee whole for any lost wages, benefits, and compensation within 14 days after service of the order.

IT IS SO ORDERED.

DATE: 09/16/2025



GLYNDA B. GOMEZ

Administrative Law Judge

Office of Administrative Hearings